

24VECV00339 24VECV00339

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Tentative Ruling

King v. Seamster, Case no. 24VECV00339

Hearing date September 17, 2026

Plaintiff King's Motion to Compel

Compliance

Plaintiff

King's Motion to Compel Deposition

Plaintiff

King sues defendant Seamster for injuries arising out of a motor vehicle accident. Defendant's insurer, Geico General Insurance Company, intervened on 9/3/26, as defendant refused to participate in the defense of this action. See 9/3/26 Min. Order. Prior to Geico's intervention, plaintiff moved to compel compliance with the court's 10/3/25 discovery order to compel defendant's deposition and for sanctions. The court continued the hearing.

Plaintiff King's Motion to Compel Compliance

The

Civil Discovery Act defines misuse of the discovery process to include failing to respond to or submit to an authorized method of discovery, making evasive responses and disobeying a court order to provide discovery. Code Civ. Proc. §2023.010(d), (f)-(g). After notice and an opportunity to be heard, the court may impose monetary, issue, evidence, terminating, and contempt sanctions

against anyone engaging in discovery misuse. Code Civ. Proc. §2023.030 (a)-(e).

Plaintiff

served form interrogatories, special interrogatories and RFPs, Set One, on defendant on 5/20/25. Decl. Navarro, para. 3. Defendant served unverified, deficient responses on 6/24/25. Id. at para. 4. The court granted plaintiff's motion to compel further responses and sanctions on 10/3/25. Id. at para. 6, exh. A; 10/3/25 Min. Order. Defendant failed to comply. Decl. Navarro, paras. 7-8.

Defendant

argues issue and evidentiary sanctions, as well as monetary sanctions against counsel, are not warranted where defendant willfully refuses to cooperate with her own insurance-appointed counsel. See Decl. Rabbani, paras. 5, 8. Defense counsel represented Geico would serve verified responses once intervention was permitted. Id. at para. 12.

There

is no evidence that defense counsel acted willfully in failing to serve further verified responses. Absent defendant's participation, verifications could not be obtained. No monetary sanctions to issue against defense counsel. However, plaintiff is entitled to responses to the discovery served. Monetary sanctions and a further order to compel issue as to defendant only. The court will discuss potential evidentiary sanctions at hearing, per plaintiff's request.

Plaintiff

requests sanctions of \$3,000. Decl. Navarro, para. 10. Plaintiff requests a reasonable hourly rate of \$500/hour. Id. Plaintiff's requests for 3 hours for motion drafting and three hours for reply and appearing at hearing is unreasonable; the court awards 2 hours for motion drafting, 1 hour for reply and 1 hour for hearing, total sanctions of \$2,500 as to defendant only.

GRANTED;

defendant Seamster to produce further verified responses and pay sanctions of \$3,600 pursuant to the 10/3/25 order within 15 days. Additional sanctions of \$2,500 against defendant Seamster only on this motion payable within 30 days.

Plaintiff King's Motion to Compel Deposition

party may move for an order compelling the attendance and testimony of a deponent where deponent fails to appear for examination following service of a deposition notice. Code Civ. Proc. §2025.450.

Plaintiff

served a deposition notice on defendant on 4/18/25. Decl. Navarro, para. 4, exh. A. Defendant served objections to the deposition notice and request for production of documents, objecting to the location noticed. Id. at para. 5, exh. B. Plaintiff requested alternative locations and dates. Id. at paras. 6-7, exh. C. Defendant failed to provide this information. Defendant has not been deposed. Id. at para. 9.

Defense

counsel argues defendant's original counsel was McDonald and Cody, LLP, and current defense counsel associated into the case in January 2026. Decl. Rabbani, para. 6. Defense counsel argues plaintiff failed to meet and confer with current counsel, nor have they addressed this issue since May 2025. Defense counsel argues this does not constitute sufficient meet-and-confer efforts under Code Civ. Proc. §2025.450(b)(2).

Defense

counsel advised plaintiff (and the court) of defendant's ongoing noncompliance with her own insurance-appointed counsel. Decl. Rabbani, para. 14. Plaintiff failed to meet and confer with current counsel, who had been counsel of record for over 6 months at the time of filing. The request for sanctions against defense counsel is unreasonable and noncompliant with Code Civ. Proc. §2025.450(b)(2). No sanctions against counsel.

DENIED;

the parties are to meet and confer regarding whether/whom Geico may be able to produce for deposition.